

Terms and Conditions

The terms on which you may use the upbss website, and the basis on which we provide estate agency services in Scotland.

DRAFT FOR LEGAL REVIEW — NOT LEGAL ADVICE. Estate agency is regulated, and Scots property law is a separate legal system. Getting these terms wrong has direct consequences: under the Estate Agents Act 1979 a fee may become unenforceable, and under the Consumer Contracts Regulations 2013 a failure to give proper cancellation notice can extend a consumer's cancellation right by up to twelve months. Do not publish without review by a **Scottish solicitor**.

1. Who we are

This website is operated by [LEGAL ENTITY NAME], a company registered in Scotland, company number [SC COMPANY NUMBER], registered office [REGISTERED OFFICE ADDRESS, EDINBURGH]. VAT registration number [VAT NUMBER].

Contact: [EMAIL] · [TELEPHONE]

We are a member of [THE PROPERTY OMBUDSMAN / PROPERTY REDRESS SCHEME] (membership number [NUMBER]), the government-approved redress scheme we are required by law to belong to. We are supervised for anti-money-laundering purposes by [HMRC / OTHER] under registration [NUMBER]. [IF YOU ALSO DO LETTINGS: We are registered on the Scottish Letting Agent Register under number LARN[...], and hold Client Money Protection through [SCHEME].]

Why this section matters. The Electronic Commerce (EC Directive) Regulations 2002 require a trading website to display the legal entity name, geographic address, contact details, company number and VAT number. Redress scheme membership must also be disclosed. If you carry out letting agency work in Scotland, registration on the Scottish Letting Agent Register and compliance with the Letting Agent Code of Practice are **mandatory and separate** from sales work.

2. Using this website

By using this website you accept these terms. If you do not accept them, please do not use the site.

You may view and print pages for your own personal use. You may not:

- republish, scrape or systematically extract listing data without our written consent;
- use the site for any unlawful purpose, or to send unsolicited marketing;
- attempt to gain unauthorised access to the site or its underlying systems;
- submit false, misleading or fraudulent enquiries.

We may suspend or withdraw the site at any time without notice. We do not guarantee it will be uninterrupted or error-free.

3. Property listings

Listing details are supplied by property owners and prepared in good faith, but they are **not a contractual offer** and do not form part of any contract of sale.

- Measurements and floor areas are approximate and should not be relied on for ordering carpets, furnishings or building works.
- Photographs and generated illustrations are indicative and may not show current condition.
- Nothing on this site is a survey. The Home Report Single Survey is the authoritative statement of condition and value.
- Fixtures, fittings and appliances have not been tested by us unless expressly stated.
- An advertised “offers over” figure is a marketing indication, not a reserve, and does not oblige a seller to accept any offer.

We take reasonable steps to comply with the **Consumer Protection from Unfair Trading Regulations 2008**, which apply throughout the UK and prohibit misleading actions and misleading omissions in property marketing, including the omission of **material information** a buyer would need in order to decide.

4. Home Reports

Under the Housing (Scotland) Act 2006, a residential property in Scotland may not be put on the market without a **Home Report** — comprising the Single Survey, the Energy Report and the Property Questionnaire — unless an exemption applies.

- The seller is responsible for commissioning the Home Report and for the accuracy of the Property Questionnaire they complete.
- We will make the Home Report available to a prospective buyer who requests it, normally within 9 days, unless the seller has properly refused the request on a permitted ground.
- The Single Survey is prepared by an independent chartered surveyor. **We do not prepare it, and we are not responsible for its contents or its valuation figure.** Any query about the survey should go to the surveyor who signed it.

5. The instant appraisal tool

The appraisal tool produces an **indicative range generated automatically from the figures you enter**. It is:

- **not** a Home Report or a Single Survey;
- **not** a RICS Red Book valuation, a mortgage valuation or a survey;
- **not** to be relied on for lending, tax, executry, matrimonial, insurance or any other legal purpose.

It cannot see the condition of your property, its outlook or its title burdens. If you are selling, the figure that will matter to buyers and their lenders is the Single Survey valuation in your Home Report, not this estimate.

6. Agency services

6.1 Your agency agreement takes precedence

Where you instruct us to market a property, the terms of that instruction — our fee, the type of agency, the minimum period and the cancellation position — are in the separate written agency agreement you sign.

Those terms take precedence over anything on this website.

Under section 18 of the **Estate Agents Act 1979**, which applies in Scotland, we must give you our terms of business, including the fee and when it becomes payable, **before** you are committed. If we do not, the fee may be unenforceable without a court order.

6.2 Type of agency

Type	What it means
Sole agency	We are the only agent instructed. A fee is due if we introduce the buyer. If you find a buyer entirely independently, no fee is normally due.
Sole selling rights	A fee is due even if you find the buyer yourself , for the whole period of the agreement.
Multiple agency	More than one agent is instructed; the agent who introduces the buyer earns the fee. Usually a higher rate.
Ready, willing and able purchaser	A fee can become due when a buyer is found who is prepared and able to proceed, even if you then withdraw . We will draw your attention to this term expressly if it is used.

6.3 Your right to cancel

Where you are a consumer and the agreement is concluded away from our business premises or at a distance, you have the right to cancel within **14 days** under the **Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013**, without giving a reason. If you ask us to begin marketing within that period and then cancel, you may be liable for a proportionate amount for services already provided. We give you a cancellation notice and form before you sign.

6.4 Fees

Our fee is stated in the agency agreement, in cash terms as well as a percentage where a percentage is used, and inclusive or exclusive of VAT as stated there. Fees quoted anywhere on this website are illustrative only. Conveyancing, Home Report and registration costs are separate.

7. Offers, closing dates and missives

We are required by the Estate Agents Act 1979 to pass on all offers promptly and in writing to the seller, unless the seller has instructed otherwise in writing.

In Scotland:

- Formal offers are made **by a buyer's solicitor**, and state a proposed date of entry and any conditions.

- Where there is competing interest we may, on the seller's instruction, set a **closing date**. A seller is **not** obliged to accept the highest offer, or any offer.
- Setting or cancelling a closing date, and a seller's decision to accept an offer before one, are matters for the seller.
- A contract is formed only on the **conclusion of missives** between the parties' solicitors. Once missives are concluded, both parties are legally bound and withdrawal may give rise to a claim for damages.

We are not your solicitor and cannot conclude missives on your behalf. Nothing said by us or on this website forms part of the missives.

8. Intellectual property

The content, layout, design and code of this site belong to [\[LEGAL ENTITY NAME\]](#) or our licensors and are protected by copyright. Property photographs, floor plans and Home Report contents remain the property of their creators and are used under licence.

9. Our liability to you

Nothing in these terms limits or excludes our liability for:

- death or personal injury caused by our negligence;
- fraud or fraudulent misrepresentation;
- any other liability that cannot lawfully be limited or excluded.

Subject to that, we are not liable for indirect or consequential loss, or loss of profit, arising from your use of this website.

If you are a consumer, you have statutory rights under the **Consumer Rights Act 2015**, which applies in Scotland, including that services be performed with reasonable care and skill. **Nothing in these terms affects those rights.** Any term found to be unfair will not be binding on you; the remainder will continue to apply.

Note for review. The original Austrian draft capped total liability at €1,000. A fixed low cap against a consumer risks being unenforceable as unfair, particularly in a transaction of this value. It has deliberately not been carried across. Your solicitor should decide what cap, if any, is defensible.

10. Complaints and redress

Please follow our Complaints Procedure. If we cannot resolve matters, you may refer the complaint to [\[THE PROPERTY OMBUDSMAN / PROPERTY REDRESS SCHEME\]](#) free of charge. Free consumer advice in Scotland is available from Advice Direct Scotland at consumeradvice.scot.

11. Data protection

We handle personal data in accordance with our Privacy Policy and UK data protection law, which applies throughout the UK including Scotland.

12. General

- **Changes.** We may update these terms; the version published here is the one that applies.
- **Severability.** If any provision is found unenforceable, the remainder continues in force.

13. Governing law and jurisdiction

These terms are governed by **Scots law**, and the Scottish courts have jurisdiction — the Sheriff Court at [\[EDINBURGH\]](#) or the Court of Session as appropriate. If you are a consumer resident elsewhere in the United Kingdom, you may also bring proceedings in the courts of the part of the UK in which you live.

Changed from the previous draft. The England & Wales version applied the law of England and Wales and excluded third-party rights under the Contracts (Rights of Third Parties) Act 1999. That Act does not extend to Scotland; third-party rights in Scots contracts are governed by the Contract (Third Party Rights) (Scotland) Act 2017, and your solicitor should decide how to deal with them.

upbss — Terms and Conditions. Version 0.2 (draft, Scotland). Last updated [\[DATE\]](#). Drafted for Scots law. Requires review by a Scottish solicitor before publication.